

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1061

By: Luttrell

AS INTRODUCED

An Act relating to crimes and punishments; making certain acts unlawful; providing penalties; defining term; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 650.12 of Title 21, unless there is created a duplication in numbering, reads as follows:

A. Every person who, without justifiable or excusable cause and with intent to do bodily harm, commits any assault upon the person of a municipal, county, or state official who is in the lawful performance of his or her duties of employment, upon conviction, is guilty of a misdemeanor and shall be punished by imprisonment in the county jail for a term not to exceed one (1) year, or by a fine not to exceed One Thousand Dollars (\$1,000.00), or by both such fine and imprisonment.

B. Every person who, without justifiable or excusable cause and with intent to do bodily harm, commits any battery or assault and

1 battery upon the person of a municipal, county, or state official  
2 who is in the lawful performance of his or her duties of employment,  
3 upon conviction, is guilty of a felony and shall be punished by  
4 imprisonment in the custody of the Department of Corrections for a  
5 term not to exceed five (5) years, or by a fine not to exceed Five  
6 Thousand Dollars (\$5,000.00), or by both such fine and imprisonment.

7 C. As used in this section, "official" means any code  
8 enforcement official, zoning official, fire official, police  
9 official, health official, safety official, building official, or  
10 deputies thereof, or any other person designated by county  
11 legislation, municipal ordinance, or state statutes to lawfully  
12 investigate, enforce, or perform duties set within such legislation,  
13 ordinance, or statutes, as adopted by the governing body thereof.

14 SECTION 2. This act shall become effective November 1, 2025.  
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